MEMORANDUM

PRIVILEGED & CONFIDENTIAL – ATTORNEY-CLIENT COMMUNICATION

To: ABC Father (Client)
From: X Privacy Law
Date: November 10, 2026
Re: Whether YouTube (Google LLC / YouTube, LLC) unlawfully collected your son's personal information without parental consent

1. Short Answer

Based on the facts you gave us, YouTube's collection of your 10-year-old son's name, gender, age, and home address without a parent's consent **likely violates the federal Children's Online Privacy Protection Act (COPPA)**, and it likely violates California privacy law as well. The strength of the case turns on one key fact: whether YouTube knew, or had reason to know from the account information, that your son was under 13. COPPA does not let parents sue directly, so any private lawsuit would rest on California claims. Your strongest immediate steps are to preserve evidence, exercise your right to review and delete your son's data, and file complaints with regulators. Several of your claims may have short filing deadlines, so you should act promptly.

2. Key Facts and Assumptions

- Your son is 10 years old. You and he both live in California. Neither parent gave consent to the collection.
- YouTube collected his name, gender, age, and home address. We assume this happened through an account or viewing activity linked to him, on YouTube's general-audience service (not YouTube Kids or a parent-managed Google Family Link account). We have not yet verified these facts (see Section 6).

3. Do YouTube's Actions Violate the Law?

A. COPPA (15 U.S.C. §§ 6501–6506; 16 C.F.R. Part 312) – Likely violation. COPPA protects children under 13. A covered website or app must (i) post a clear privacy notice, (ii) obtain *verifiable parental consent* before collecting a child's personal information, and (iii) give parents the right to review, delete, and stop further collection of that information (16 C.F.R. §§ 312.4–312.6). A full name, home address, and persistent identifiers (such as device or cookie IDs) are all "personal information" under the rule. COPPA applies when an operator has "actual knowledge" that it is collecting information from a child, or when the service is directed to children. Google and YouTube have faced this kind of claim before: in 2019 they agreed to pay $170 million (to the FTC and the New York Attorney General) to settle allegations that YouTube collected children's data without parental consent. That is the closest precedent to your situation. Age and gender, standing alone, are weaker data points, but here they were collected together with a name and address, which strengthens the case that the package is personal information.

B. California law.

- **California Consumer Privacy Act (CCPA), Civ. Code § 1798.100 et seq.** Businesses must give notice at collection and must not sell or share the personal information of a child under 13 without parental opt-in consent (§ 1798.120(c)). Parents can request access and deletion. The California Attorney General and the California Privacy Protection Agency (CPPA) enforce the law, with penalties of up to $2,500 per violation, or $7,500 for intentional violations or violations involving minors. Individuals generally cannot sue under the CCPA, except for certain data breaches (§ 1798.150).
- **California Constitution, art. I, § 1 (right to privacy).** Privacy is an inalienable right in California and applies to private companies. A child's identity and home address are protected interests, and collecting them secretly from a child without consent is a strong privacy claim.
- **Unfair Competition Law (UCL), Bus. & Prof. Code § 17200.** The "unlawful" prong lets us treat a COPPA or CCPA violation as an unfair business practice. The UCL provides an injunction and restitution, but not damages.
- **CalOPPA, Bus. & Prof. Code § 22575 et seq.** A website must post an accurate privacy policy. If YouTube's policy misstates how it handles children's data, that is a separate violation.
- **Other laws.** California's Age-Appropriate Design Code Act (Civ. Code § 1798.99.28 et seq.) would add protections for minors, but a federal court has blocked its enforcement (*NetChoice, LLC v. Bonta*), so we do not rely on it. California's wiretap law (Penal Code §§ 631, 632, 637.2, $5,000 per violation) applies only if communications were recorded or intercepted. We will check whether the facts support it, but we do not

expect it to apply.

C. Defenses to expect. YouTube will likely argue that (1) it did not know the user was a child, because a self-entered birthdate showed an adult age; (2) its Terms of Service and age-gate put responsibility on the user; (3) some data use was for internal operations, which COPPA allows without consent in limited cases; (4) any arbitration clause or class-action waiver requires individual arbitration; and (5) you cannot show a concrete harm. Each defense is answerable, but they are why the "actual knowledge" facts matter most.

4. Relevant Case Law

- ***United States v. Google LLC & YouTube, LLC* (D.D.C. 2019)** (FTC and New York AG consent judgment, $170 million). The closest factual precedent. It is a government settlement, not a court ruling on the merits, and it does not create a private right to sue.
- ***Jones v. Google LLC*, 73 F.4th 636 (9th Cir. 2023).** The Ninth Circuit held that COPPA does not preempt state-law claims that are consistent with COPPA's standards, so California claims about children's data can proceed.
- ***In re Facebook Internet Tracking Litigation*, 956 F.3d 589 (9th Cir. 2020).** Users stated claims for intrusion upon seclusion and privacy violations based on the tracking of their personal data, which supports the idea that unauthorized data collection is a real injury.
- ***Hill v. NCAA*, 7 Cal. 4th 1 (1994); *Williams v. Superior Court*, 3 Cal. 5th 531 (2017).** These set the framework for California constitutional privacy claims. *Williams* holds that the seriousness of an intrusion is weighed in a balancing test rather than required as a threshold showing.
- ***Hernandez v. Hillsides, Inc.*, 47 Cal. 4th 272 (2009).** Intrusion upon seclusion requires an intrusion into a reasonable expectation of privacy that is highly offensive.
- ***TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021).** In federal court, a plaintiff must show a concrete harm. Intangible harms such as invasion of privacy can qualify when they resemble harms recognized at common law. This matters if we file in federal court.

5. Your Legal Options

Option	What it can achieve	Pros / Cons
1. Data rights request (COPPA § 312.6; CCPA access and deletion)	Written demand that YouTube disclose all data it holds about your son, delete it, and stop collecting it.	Free and fast; creates a record. YouTube may refuse or ask for proof of your identity and parent-child relationship.
2. Regulatory complaints (FTC; California AG; CPPA)	Government investigation and possible enforcement, including penalties paid to the government.	Free. You will not receive personal compensation, and agencies choose which cases to pursue.
3. Demand letter from our firm	Formal demand for deletion, an accounting, policy changes, and possibly a settlement payment.	Applies pressure and may resolve the matter early. Requires a clear record of the facts first.
4. Lawsuit (UCL; constitutional privacy; intrusion upon seclusion; possibly wiretap)	Injunction, restitution, and damages for your son's privacy injury; possible punitive damages if conduct was malicious.	Strongest path to money, but COPPA itself has no private right of action, damages are hard to prove, litigation is costly and slow, and arbitration may apply.
5. Class action (joining or leading a group)	Pools claims of many affected families; makes the case economically feasible.	Likely more practical than an individual suit if many children were affected. Individual recovery is usually smaller.

Deadlines. Time limits are short and may be argued from when you discovered the collection. The general privacy and tort claims typically have a two-year limit (Code Civ. Proc. § 335.1); UCL claims have four years (Bus. & Prof. Code § 17208); and wiretap claims have a one-year limit (Code Civ. Proc. § 340). Your son's own claims are generally paused until he turns 18 (Code Civ. Proc. § 352), but **your claims as a parent are not**. Do not rely on tolling.

6. Recommendations and Next Steps

1. **Preserve evidence now.** Take dated screenshots of the account, any notices or emails from Google/YouTube, the birthdate entered, and the devices used. **Do not delete the account** until we have captured the data.

2. **Answer our fact questions:** Who created the account and when? What birthdate was entered? Did you ever set up Family Link or sign in as a parent? Where did the address come from, and did anyone share it with YouTube? Have you received any data-breach notice?
3. **Send a data request** to Google/YouTube (we will draft it) asking for a copy of all data, deletion, and an end to collection. Keep the response; a refusal or delay is useful evidence.
4. **File complaints** with the FTC (ftc.gov/complaint), the California Attorney General (oag.ca.gov), and the CPPA (cppa.ca.gov). We will prepare the summaries.
5. **Protect your son now** by using YouTube Kids or a supervised Family Link account, and by turning off personalized ads and unnecessary data settings (after evidence is captured).
6. **Within 30 days,** we will meet to decide whether to send a demand letter, file suit, or join a class action, and we will discuss our fee arrangement in writing.

Limitations. This memo is based only on the facts you provided, and we have not yet investigated them. It is not a guarantee of any outcome. The FTC amended the COPPA Rule in 2025, with new requirements phasing in through 2026, and the case law in this area is changing quickly. All citations come from our preliminary research and must be cite-checked before any filing.